

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, July 15, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-01931	Elizabeth Gonzalez vs Merced AR, et al.
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Order to Show Cause Re: Dismissal

VACATED. On July 9, 2026, Counsel for Plaintiff filed a declaration regarding dismissal. The court finds the declaration sufficient as to why this matter should not be dismissed.

24CV-01683	Gabriel Zamorano Lugo, et al. vs Auto Resources, Inc., et al.
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Motion to Compel Arbitration Pursuant to Cal Code Civ Proc 1281.2, 1281.4, and 1281.7; to Stay the Proceedings Pending Completion of Arbitration

The motion to compel arbitration is GRANTED.

The request to stay this action is GRANTED.

When a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1)

whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

The moving party “can meet its initial burden by attaching to the [motion] a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.)

By attaching the arbitration agreement as Exhibit 2, to the Declaration of Jameel Taha, with Apodaca’s handwritten signature, Auto Resources has established a prima facie case that an enforceable agreement to arbitrate exists.

Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) Here, Apodaca does not challenge the existence of the arbitration agreement or her signature.

Apodaca challenges the motion on the basis ACIC is not a party to the arbitration agreement. As argued by Auto Resources, it is seeking to enforce the arbitration agreement against Apodaca and not ACIC. ACIC was found to have a right to interplead the funds, has deposited the funds with the court, and has been dismissed from this case. The issue that remains is the resolution of the underlying dispute between Apodaca and Auto Resources, which does not include ACIC. As to the interplead funds, although the underlying dispute may be subject to arbitration, the court maintains jurisdiction over the deposited funds.

Apodaca also challenges the arbitration agreement as unconscionable. Here, there are some aspects of procedural unconscionability. However, a finding of procedural unconscionability “does not mean that the contract will not be enforced, but rather that the courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (*Baltazar v. Forever 21, Inc.*, (2016) 62 Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong.

The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement applies to all parties, provides for a neutral arbitrator that must follow the law, provides adequate discovery, and provides types of relief otherwise available in this court.

The court declines to order arbitration with JAMS. The arbitration agreement is clear in that absent an agreement between the parties, either AAA or NAM are to be the arbitration organization. However, Auto Resources is to pay for costs unique to arbitration.

This action is stayed pending arbitration.

An arbitration status hearing is set for Tuesday, January 13, 2027, at 8:15 a.m. in Courtroom 8.

Auto Resources, as prevailing party, is ordered to prepare an order consistent with this order, to be filed with this court within five (5) days.

25CV-03796 Manuel Valencia, et al. vs Fire Insurance Exchange Insurance Company

Motion for Summary Judgment

Defendant's unopposed motion for summary judgment is GRANTED.

Upon consideration of all the evidence set forth in the moving papers the court finds that there is no triable issue of material fact and Defendant is entitled to judgment as a matter of law.

Defendant filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiffs' claims are barred by failing to file their lawsuit within the one-year provision of their policy.

This shifts the burden to Plaintiffs to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2).) By not filing any opposition, including a separate statement, Plaintiffs have failed to meet their burden on this motion.

Defendant is ordered to prepare and file a proposed order and judgment consistent with this order, to be filed with this court within five (5) days.

25CV-05313 Brett Jones vs General Motors, LLC

Demurrer to Plaintiff's First Amended Complaint

Defendant's demurrer to Plaintiff's fifth cause of action is SUSTAINED WITH LEAVE TO AMEND on the basis of failure to state facts sufficient to constitute a cause of action.

Here, Plaintiff does not allege enough facts to support a fraudulent inducement concealment cause of action. For example and not exhaustive, the complaint (1) fails to identify the specific selling dealership that is alleged to be GM's authorized dealership, (2) fails to allege sufficient facts identifying the specific marketing statements that were misleading and that were relied upon by Plaintiff, (3) fails to allege sufficient facts regarding dealership personnel, conversations, or content of omissions at the point of sale, and (4) fails to allege sufficient facts tying the alleged authorized dealership's specific acts to GM beyond conveying information from GM to prospective purchasers.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

Motion to Strike